

STATE OF NEW YORK

3191--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. LUNSFORD -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to allowing certain physically disabled individuals to complete live-fire range training course and proficiency demonstration requirements for a concealed carry license while sitting

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 19 of section 400.00 of the penal law, as added
2 by chapter 371 of the laws of 2022, is amended to read as follows:

3 19. Prior to the issuance or renewal of a license under paragraph (f)
4 of subdivision two of this section, issued or renewed on or after the
5 effective date of this subdivision, an applicant shall complete an
6 in-person live firearms safety course conducted by a duly authorized
7 instructor with curriculum approved by the division of criminal justice
8 services and the superintendent of state police, and meeting the follow-
9 ing requirements: (a) a minimum of sixteen hours of in-person live
10 curriculum approved by the division of criminal justice services and the
11 superintendent of state police, conducted by a duly authorized instruc-
12 tor approved by the division of criminal justice services, and shall
13 include but not be limited to the following topics: (i) general firearm
14 safety; (ii) safe storage requirements and general secure storage best
15 practices; (iii) state and federal gun laws; (iv) situational awareness;
16 (v) conflict de-escalation; (vi) best practices when encountering law
17 enforcement; (vii) the statutorily defined sensitive places in subdivi-
18 sion two of section 265.01-e of this chapter and the restrictions on
19 possession on restricted places under section 265.01-d of this chapter;
20 (viii) conflict management; (ix) use of deadly force; (x) suicide
21 prevention; and (xi) the basic principles of marksmanship; and (b) a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 minimum of two hours of a live-fire range training course, provided
2 however, if an applicant has a physical disability that prevents such
3 applicant from being able to stand up or remain standing, and such
4 applicant provides medical information necessary to verify the existence
5 of such physical disability, such live-fire range training course and
6 proficiency demonstration requirements may be completed while sitting
7 down. The applicant shall be required to demonstrate proficiency by
8 scoring a minimum of eighty percent correct answers on a written test
9 for the curriculum under paragraph (a) of this subdivision and the
10 proficiency level determined by the rules and regulations promulgated by
11 the division of criminal justice services and the superintendent of
12 state police for the live-fire range training under paragraph (b) of
13 this subdivision. Upon demonstration of such proficiency, a certificate
14 of completion shall be issued to such applicant in the applicant's name
15 and endorsed and affirmed under the penalties of perjury by such duly
16 authorized instructor. An applicant required to complete the training
17 required herein prior to renewal of a license issued prior to the effec-
18 tive date of this subdivision shall only be required to complete such
19 training for the first renewal of such license after such effective
20 date.

21 § 2. This act shall take effect immediately.